

Simi K.T vs Ullas Babu on 9 October, 2025

Mat.A Nos.130/2020,132/2020 & 136/2020

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2025 : KER : 7558

IN THE HIGH COURT OF RERALA AT EENAKULZD4

PRESENT

THE HONOURABLE in. dustlch= DEVAN RAMACHANDRzua
&

THE HONOURABLE MRS.

JUSTICE M.B. SREHALATHA

THURSDAY, THE 9TH DAY OF OCTOBER 2025 / 17TH ASWIRA, 1947

RAT.APPEAL NO. 130 OF 2020

AGAINST THE JUDGMENT DATED 03.01.2020 IN OP NO.465 OF
2017 OF FAMILY COURT, ERNAKULAM

APPELLANT/PETITIONER:

SIMI, AGED 36 YEARS
D/O. THIRIAKZEN, KOOTTUNGAI HOUSE, ROTTUVALLIKADU,
MOOTHAKUNNAM. P. O, MOOTHAKUNNAM VILLAGH=,
PARAVUR TAI+UK, EENAKULZD4 DISTRICT-683516
BY JDVS.
SRI . N . K . SURENDRAN
SHRI . S . ANANTHAKRISHNAN
SRI . a . A . EASWAR PRASAD
SHRI . ABRAHAM MATHAN

RESPONDENT/RESPONENT :

ULLAS BABU
s/o. PURUSHOTHARAN, SARADHA NIVASAM, KZLIMANAM. p.o,
PAPPANAREDDY, THIRUVANANTHAPURAM VILLAGE,
THIRUVANANTHAPURAM DISTRICT-695 040

BY ADV SRI.PREMCHAND M.

THIS MATRIMONIAL APPEAL HAVING COME UP FOR HEARING ON
09.10.2025, ALONG WITH Mat.Appeal.132/2020, 136/2020, THE
COURT ON THE SAME DAY DELIVERED THE FOLLOWING:
Mat.A Nos.130/2020,132/2020 & 136/2020 2 2025 : KER: 75587

IN THE HIGH COURT OF RERALA AT ERNAKULZD4

PRESENT

THE HONOURABLE in. eustlce DEVAN RZDMCHANDRAN
&

THE HONOURABLE ins.]-ustlch M.B. SNEIALATHA

THURSDAY, TEE 9TH DAY OF OCTOBER 2025 / 17TH ASWINA,

1947

mT.AppEAI] No. 132 of 2020

AGAINST THE dTJDGN4ENT
COURT ,. ERNAKULAI4

IN op No.465 of 2017 of FAMILY

AppEI.LZINT/REsporoENT:

SIMI, AGED 37 YEARS
D/O. THILAKAN, KOOTTUNEAL HOuse, KOTTuvALI.IKKADu,
MOOTHAKUNNA P. O. , MOOTHAKUNNAM VIIiIAGHE ,
PARZIVUR TAIiUK, ERigAKuLiAM DISTRICT - 683 516
By anvs .
SRI . N . K . StJBFLZuENIAN
SHRI : S . ANANTIIAREISIINAN
SRI . 8 . A . EAmaR PRASAD
SHRI . ABRAHAM mTHZDT

RESPONDENT/PETITIONER:

tJLus BZBU
AGED 38 YEARS
S/O. PURUSHOTHAMZEN, SARADHA NIILAYAM,
KAIMZENAM P.O. , PAPPANAMKODU,
THIRUVANZINTHAPURZD4 VIIiLLAGE ,
THIRUVZEN:ZENTHAPURAM TAliuK , THIRUVANZENTHAPURAM
DISTRICT - 695 040

BY ADV SRI .PREMCHAND M.

THIS MATRIMONIAL APPEAL HAV.ING COIE UP FOR HEARING ON
09.10.2025, AI.ONG WITH Mat.Appeal.130/2020 AND CONNECTED
CASES, THE COURT ON THE SAME DAY DELIVERED THE FOIIL0"ING:
Mat.A Mos.130/2020,132/2020 & 136/2020 3

IN THE HIGH cOuRT OF KERAI&A AT ERNAKULzan4

PRESENT

TEE HONOURABLE in.]ustlce DIVAN RABmCHANDRAN

&

THE HONOURABLE ins.]uSTICE M.B. sREHrmTHA
THURSI)AY, TEE 9H DAY OF OCTOBER 2025 / 17TH ASWINA, 1947

rmT.AppEAL No. 136 oF 2020

I _ _ _ _ _ I

AGAINST THE JUDGnENT DATED 03.01.2020 IN op No.285 oF
2017 oF FaMII]¥ CouRT, AKULzu4

APPELLiANT/PETITIONER:

SIMI K.I. , AGED 36 YEARS
D/0. THILAKZEN, KOOTTUNGAL HOUSE, KOTTUVAIIIIiLKADU,
MOOTHAKUNREiM P. 0. , MOOTIARIJNNAM VILLAGE ,
PARAVUR TAliuK, ERNAKULZD4 DISTRICT - 683 516.
8¥ anvs .
SRI . N . K . SuBRmmNIAN
SRI . 8 . A . EAsmaR PRASAD
SHRI . ABRAHZLM RATHAN

REspondENT/REspoueENI:

t}Llus Eneu
AGED 37 YEARS
s/o. puRuSHOTHABmN, SARADHA NILZL¥AM,
KAIMANAM P. 0. , PAPPANAMKODU,
THIRUVZENANTIIPURAM VII]IiACH= ,
THIRUVANZENTHAPURAM TALUK ,
THIRUVANANTHAPURAM DISTRICT -695 040.

BY ADV SRI.PREMCHAND M.

THIS RATRIMONIAL APPEAL HAV'ING COIE UP FOR HEARING ON
09.10.2025, ALONG WITH afat.Appeal.130/2020
CASES, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

Mat.A Mos.130/2020,132/2020 & 136/2020 4 2025 : KER: 75587

DEVAN RAMACHANDRAN & M.B.SNEl[]ALATHA, JJ.

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Mat.Appeal Nos.130/2020,132/2020 & 136/2020
11111-----I-----11-----
Dated, tliis the 9tli October, 2025

JUDGMENT

B.Snehalatha These appeals have been filed by the wife against the judgment and decree in O.P.No.2073/2016, O.P.No.465/2017 and O.P.No.285/27 of Family Court, Ernakulam.

2. Today, when these appeals came up for hearing, the learned counsel appearing for both sides submitted that the entire disputes between the parties have been settled and a joint petition and memorandum of mediation settlement agreement have been filed before this Court.

3. In view of the settlement arrived at by the parties, appellant and respondent have filed a petition filed under Section 138 of the Hindu Marriage Act, 1955 for dissolution of their marriage by mutual consent, wherein they have stated that they have mutually agreed and decided for dissolution of marriage voluntarily and there is no scope for reunion. They have been living separately from 4.4.2013 and all efforts for reunion had failed and there is no impediment for filing this petition.

Mat.A Nos.130/2020,132/2020 & 136/2020 5 2 0 2 5 : KER : 7 5 5 8 7

4. We have examined the memorandum of mediation settlement agreement and the joint petition filed under Section 138 of Hindu Marriage Act, 1955 and we notice that it has been signed by the parties and subscribed by their counsel. The terms of the agreement are lawful and therefore, the settlement arrived at by the parties is accepted.

5. Both parties have affirmed that the entire disputes between the parties have been settled in terms of the memorandum of mediation settlement agreement filed by the parties.

6. We are convinced that the marriage between the spouses who are Hindus has been irretrievably broken down and there is no possibility of reunion and divorce is the viable option and all the attempts of reunion have been failed, We are also convinced that the parties have voluntarily filed the petition under Section 138 of the Hindu Marriage Act, 1955 and there is no collusion between the parties.

7. We are of the view that this is a fit case to grant divorce by mutual consent on the application filed under Section 138 of the Hindu Marriage Act, 1955.

8. In view of the memorandum of mediation settlement agreement and the joint petition filed by them, these three appeals are disposed of as follows:

Mat.A Nos.130/2020,132/2020 & 136/2020 6 2025 : KER: 75587

(a) Mat.A No,132/2020 is allowed and the judgment and decree in O.P.No.465/2017 of Family Court, Ernakulam are set aside and divorce is granted under Section 138 of the Hindu Marriage Act, 1955. The marriage between the appellant and the respondent is dissolved by a decree of divorce by mutual consent under Section 138 of the Hindu Marriage Act, 1955 with effect from today.

b) Mat.A No.130/2020 is dismissed.

c) Mat.A No.136/2Q20 is disposed of in terms Of the memorandum of mediation settlement agreement filed by the parties.

9, The parties are directed to act implicitly in terms of the memorandum of mediation settlement agreement and shall comply all U the terms therein.

10. The memorandum of mediation settlement agreement and' the joint petition filed by the parties shall do form part of this judgment. A Sd/-

DEVAN FIAMACHANDFIAN JUDGE Sid I -

M.B.SNEHALATHA JUDGE ab BEFCREE THE H.OziiF.*BEE H-FG.FF. cceET OF KERALA AT ERNAKULAM Mat.Appeal Mos.130 of 2020,132 of 2020 & 136 of 2020 Simi K,T. •, Appellant •Vs. Respondent _MEMOF`ANDUM OE MEDIATION__ SETTLEMENT_ AGREEMENT__ UNDER sECT[ON ,_a9_ _O_F THE CODE_ OF THE c]vL__ PRO_c_EDURE_ FLEAD w]_I_E± it. is respe.ctfu.fry-submitt.ed..as fotfows :.

The above three Mat. Appeals were referred for Court annexed mediation. Out of mutual discussions the parties were able to resolve their disputes amicably.

The Appellant and Respondent herein are wife and husband •reri.ettivefty. The marriage `izetween them vias solemnized on lij/i2.J2@i2 ih accordance with Hindu rites and customs] A girl child was born to th`em in that wedlock on 11/09/2013 After mutual discussions both p.arties ha.ve come to the conclusion that there is no possibility of their differences being reconciled , that their marriage has broken down irretrievably and hence they decided to obtain a decree of divorce by mutual consent. Parties have sett[etr. a..Ff-. d.isputes p.e.ndin.g-b:etwee.n. the.in.. Acco.rding fy. they. agreed-o.n` th.e. following terms and conditions:-

1. The respondent Sri.UIIas Babu-Husband has agreed to pay a composite sum of Rs.22,00.,000/- (Rupees Twenty two lakhs only) Iowa.rds rfu..1.I a.nd '.tina-I .sett.1ein.ent -Of a.]1 i.h.e -c-]aim's .o`f . the pet.itio.n.er-wife-

inc]uding the claim for mainte.nance for the minor child namely Miya Uilas Mat.Appeal Nos.130 of 2020,132 of 2020 & 136 of 2020 App.e,I-a.nf.

Simi K.T.

UI]as Babu

(.2) ..

{a} Out of the above mentioned Rs.22,00,000/- (Rupees

Twenty

lakhs only) Rs.12,00,000/-(Rupees Twelve lakhs only)will be transferred to the account of Smt.SimS K.T., maintained in CSB Bank, Thuruthipuram Branch on or before 17/8/2025 by way of NEFT/Bank transfer. The said a.in.o`uflt .Of R-S.i2 ,.oo.,.®®@7-.-{R.up.e`e.s Tw.e-]v.a .]a:.khs ch']y).sha.]] `b'e d'ep'osite.d in the name of Kumari Miya Uilas (Daughter) in the form of a fixed deposit/term deposit in Bank of India, Moothakunnam branch where a joint account is maintained

by Smt.Simi K.T and Kumari Miya Ullas. Smt.Simi K.T. shall handover a photostat copy of the fixed term deposit receipt to- Sri.Ullas Babu. as a pro. of for having in. a. de. the. fixed term deposit in the name of the minor daughter. Smt.Simi K.T. is authorized to collect the periodical interest of the same through the joint account maintained by Simi and Miya in Bank of India for the maintenance of the minor child. The said term/fixed deposit shall have a minimum lock-in period upto the date of termination. Of 10 years of -Kumari Miya Ullas.

(b) Upon receipt of the proof of fixed deposit/term deposit in the name of Miya Ullas the balance amount of Rs.10,00,000/- (Rupees Ten lakhs only) shall be transferred by NEFT/Bank transfer to the account of Smt.Simi K.T. maintained in C.S.B. Bank, Thuruthi-ppura.in. branch. on or before 17/10/2025 by Sri.Ullas Babu without fail.

2.Sri.Ullas Babu shall make arrangements to provide self attested copies of the relevant page(s) of his SSLC Book evidencing his caste to Kumari Miya Ullas for the purpose of obtaining her caste certificate.

• anat.Ap.pel Nos.130 of 2020, 132 of 2020 & 136 of 2020 Appellant Respondent Simi K.T, vs Babu, P (3.).

3.Sri.Ullas Babu shall be permitted to have visiting right of his child Kumari Miya Ullas (11 years old now). Such visitations shall be only on Saturdays and Sundays and school holidays, during day time without affecting her studies, till evening 3.15 p.m. shall be at Zamangalpur, North Paravur. Such visitations shall be with prior notice to the child and the mother at least one week prior to the visit, Sri.Ullas Babu shall have uninterrupted interaction with Kumari Miya Ullas over phone having No.989505.9120. Smt.Simi K.T. shall not obstruct or interrupt such interaction between them. d.a.ug.ter..

4.All claims and rights of wife Simi K.T and daughter Miya Ullas including past and future maintenance shall be treated as settled in full by the above payment and the same. They will not make any further claim for maintenance and Parties shall have no further claims between them in future.

Mat.App.ea.i; Nos.130 of 2020, 132 of 2020 & 136 of 2020 Appellant Simi K.T. vs. Ullas Babu. Upon receipt of the amount in-entitled above the parties agree to file a joint petition for divorce before this Hon'ble Court. Parties pray for disposal of the above three Mat. Appeals pursuant to this mediation settlement.

-isaided this 15th day of July, 2025.

Mat.Appel Nos.130 of 2020, 132 of 2020 & 136 of 2020 Appellant Respondent Simi K.T vs. Ullas Babu. c'ou n Jstroffifeif. ## Khafae Counse-I f mat. Appeal Nos. 130 of 2020, 132 of 2020 & 136 of 2020 132 of 2020 & 136 of 2020 \ VERIFICATION We, the parties above named, do hereby solemnly state and declare that what is contained in paragraphs (1) to (5) are true to the best of our knowledge, information

and belief.

Mat.Appeal Nos.130 of 2020,132 of 2020 & 136 of 2020 / Ap.p.e.llant Resp'o.ndent This settlement
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